



DECISION

Complaint No. : POS/ROM/254/2025/RM-299

Name and address of the complainant : Mr. Tehseen H. Qureshi & others
R/o H. No. 92, Mir Jan Muhammad Colony, ward No. 03,
Digri, District Mirpurkhas.

Name of the Agency Complained against : Executive Engineer, Irrigation Naseer Division Hyderabad.

Name & Designation of Investigating Officer : Mr. Zulfiqar Ali Junejo, T.I
Consultant/Regional Director, Mirpurkhas.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **COMPLAINT AGAINST IRRIGATION DEPARTMENT, NASEER DIVISION HYDERABAD ALLEGING ILLEGAL CHANGE OF MODULE OF WC-DO-371/L, NASEER MINOR**

Complaint

Mr. Tahseen H. Qureshi and others filed a complaint dated 30.06.2025 wherein they stated that the irrigation officials have illegally changed the module of WC-DO 371/L, Naseer minor from AMP type to Iron-Box, therefore, they are facing shortage in supply of irrigation water for their crops. They approached the Executive Engineer, Naseer Division in this regard but to no avail. Aggrieved by that, they solicited intervention of this Institution.

Proceeding

2. The complaint was admitted under section 10 of Establishment of the office of Ombudsman for the Province of Sindh Act 1991 (amended up to date) after receiving mandatory affidavit on Form-A, copy of CNIC and by condoning the delay.
3. This office issued a notice vide letter dated 03.07.2025 to the Executive Engineer, Irrigation Naseer Division, Hyderabad and concerned Assistant Engineer for report. In response, the Assistant Executive Engineer informed vide letter dated 11.09.2025 that the modules of water courses have been made with iron box as the same cannot be tempered.
4. The report of the agency was sent to the complainants for rejoinder vide letter dated 15.09.2025, who in response asked for submission of relevant law for change of modules of water courses.
5. The case was heard on 26.11.2025, attended by the complainant Tahseen H. Qureshi and Assistant Executive Engineer Irrigation Department who submitted report signed by the Executive Engineer, Irrigation Naseer Division wherein it was informed that the iron-box modules are being installed since 2018-2019 and the growers are over all satisfied with iron box modules. The complainants had filed a Constitutional Petition before Hon'ble High Court Sindh, Circuit Bench, Mirpurkhas which has been dismissed by the court vide order dated 30.04.2025.

(2)

Findings

6. The complaints have already been adjudicated by the court, hence no further action is required by this office under section 9(1) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991.

Decision

7. In view of above and in exercise of powers vested in me under section-11 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (Amended up to date), the complaint is disposed of as adjudicated by the court.

Given under my hand and seal of the office

Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 13th January, 2026

